



GYMFUSION Privacy Policy

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1. Introduction

At GYMFUSION, we are committed to protecting your privacy and handling personal information transparently, respectfully and securely. This Privacy Policy explains how GYMFUSION collects, holds, uses and discloses personal information and health information, and how you may access, correct or raise concerns about information we hold about you.

GYMFUSION handles personal information in accordance with applicable privacy laws, including the Privacy Act 1988 (Cth) and the Australian Privacy Principles (APPs) where they apply. Health information handled in Victoria is also subject to the Health Records Act 2001 (Vic) and the Health Privacy Principles (HPPs), where applicable. The Health Records Act applies to private organisations that handle health information in Victoria, including gymnasiums.

We collect only information that is reasonably necessary for our functions and activities, or otherwise permitted by law. Sensitive information, including health information, is collected with appropriate consent unless an exception permitted by law applies. This Policy should be read together with any collection notice presented when information is collected, including notices used during the Expression of Interest process.

2. Definitions

For this Privacy Policy, terms such as personal information, sensitive information and health information have the meanings given by applicable privacy legislation. The following additional terms are used for clarity.

Informed Consent

Consent that is voluntary, informed, current and specific, and given by an individual with capacity to understand what they are agreeing to (or by an authorised representative where permitted).

Express Informed Consent

Clear and explicit permission to collect, use, store or disclose information after the relevant purpose and handling arrangements have been explained. GYMFUSION obtains express consent for detailed health-information collection where required by law or by our collection process.

Health Information

Health information is sensitive information under the Privacy Act 1988 (Cth). It can include medical history, injuries, disability-related information, health screening responses, support needs and other information about an individual's physical or mental health. Health information handled in Victoria is also regulated by the Health Records Act 2001 (Vic).

Astro

GYMFUSION's internal staff CRM and member portal interface. Astro accesses and manages information stored within GYMFUSION's Wix environment through authorised Wix APIs. Astro is a GYMFUSION-controlled system and is not presented as an independent third-party service provider.

3. The Kinds of Personal Information We Collect

Category	Examples of information we may collect	Why we may collect it
Identity, contact and demographic information	Name, preferred name, pronouns, age/age band, sex recorded at birth (including “Prefer not to say”), residential/postal address, email and mobile number.	To verify identity, maintain accurate records, communicate with you and administer your relationship with GYMFUSION.
Service, participation and operational information	Service preferences, work-shift information, usual availability, enrolment, attendance, cancellations, waitlist or placement information, coaching observations, progress notes and incident records.	To assess eligibility and suitability, manage scheduling and availability, deliver services, support safety, administer attendance/credits and meet operational obligations.
Health and sensitive information	Health history, injuries, disability-related or support information, health screening responses, reasonable-adjustment information and other health information provided during the EOI or service relationship.	To assess health-related risk, determine safe and appropriate participation, identify supports or reasonable adjustments, and provide appropriate coaching within GYMFUSION’s scope.
Payment and billing information	Payment status, invoices, billing history and transaction references. Complete payment card numbers are processed through Stripe and are not intentionally stored in Astro or Wix CMS.	To process payments, administer billing and maintain financial and transaction records.
Digital and communication records	Online form submissions, portal activity, system logs, communications with GYMFUSION, consent/acknowledgement records and, where separately authorised, photographs, video or audio.	To operate our website, portal and internal systems, maintain security/audit records, respond to enquiries and document consent, instructions or communications.
Referrer / authorised representative information	Name, role, organisation, professional details, contact details, authority to act, communications and liaison notes where relevant.	To manage referrals or authorised communications where you have authorised this or where otherwise permitted by law.

3.1. Participation and Behavioural Observations

Participation observations and progress notes may include behavioural or movement observations recorded by authorised GYMFUSION staff. Where an observation relates to, or could reasonably reveal, an individual’s physical or mental health, injury, disability or support needs, GYMFUSION treats that information as health information and applies the protections described in this Policy.

4. How We Collect Personal Information

We collect personal information in several ways, including:

- Directly from you (in person, by phone, email, or online forms)
- Through our Expression of Interest and referral processes
- From authorised third parties, with your consent
- Through participation in our programs, classes, or events

- Through our website, GYMFUSION Portal and Astro system, including online forms and account activity.

We collect sensitive information, including health information, only where it is reasonably necessary for our functions or activities and with the consent required by applicable law, unless a permitted exception applies (for example, where collection is authorised by law or necessary in a serious emergency).

5. Use and Disclosure of Personal Information

We use personal information to:

- Provide and manage our services
- Tailor programs to your needs
- Communicate with you about our services
- Manage referrals and related processes
- Meet legal, insurance, and compliance obligations

We may also use demographic information (such as age band, pronouns and sex recorded at birth where provided) for legitimate service-planning, screening and inclusion purposes.

Sex recorded at birth may be considered alongside an individual's health profile, training history and other relevant factors when interpreting pre-exercise screening information and determining appropriate coaching or exercise modifications.

- To plan and improve services and understand service demand.
- To support appropriate screening, programming and coaching decisions.
- To support inclusive service design and reasonable adjustments.

We will not use or disclose personal information for an unrelated purpose unless you have consented, the use or disclosure is required or authorised by law, or another permitted exception applies.

5.1. Digital Systems and Service Providers

GYMFUSION uses a number of digital systems to operate its services and manage personal information. These include Wix, which supports our website, member-facing systems, Wix CMS data storage and related APIs; Stripe, which is used for payment processing and billing; and the Microsoft 365 Professional Suite (Microsoft 365), which is used for business communications, document management and administrative records.

GYMFUSION also operates Astro, our internal staff CRM and member portal interface. Astro accesses and manages information stored within GYMFUSION's Wix environment through authorised Wix APIs.

Stripe processes payment card information used to complete transactions. GYMFUSION receives and retains billing and transaction information necessary to administer member accounts but does not intentionally store complete payment card numbers in Astro or Wix CMS.

We may disclose personal information to these and other approved service providers only to the extent reasonably necessary for them to provide services to GYMFUSION. Provider arrangements may change over time; where a change materially affects how personal information is handled, this Policy and relevant collection notices will be updated as appropriate.

6. Sensitive and Health Information

GYMFUSION may collect health information such as medical history, injuries, disability-related information, health screening responses, support needs and reasonable-adjustment information where this is reasonably necessary for safe and appropriate participation or service delivery. Detailed health information is collected with express consent where required by applicable law and our collection process, unless a lawful exception applies.

Health information handled in Victoria is managed in accordance with the Health Records Act 2001 (Vic) and the Health Privacy Principles (HPPs), where applicable. Access to health information is limited to authorised staff and approved systems where access is reasonably required for the relevant purpose.

7. Expression of Interest (EOI), Referrals and Consent

7.1. EOI Part 1 - Initial Information

EOI Part 1 collects initial personal information such as identity and contact details, demographic information, service preferences, work-related availability information and usual training availability. Part 1 is accompanied by a Privacy Collection Notice explaining the purposes of collection, consequences of non-disclosure, relevant disclosures, security, access/correction and privacy contact pathways.

7.1. EOI Part 2 - Health Profile

Detailed health-information collection begins in EOI Part 2. Before providing the Health Profile, individuals are presented with a dedicated Health Information Collection Notice explaining the purpose, use, disclosure, storage, access/correction and legal handling of health information. Express consent is obtained before the detailed health information is submitted.

GYMFUSION keeps records of privacy acknowledgements and consent where appropriate, including when and how consent was obtained. Consent and acknowledgement records are retained only for as long as reasonably necessary for service delivery, legal obligations, audit requirements or other legitimate operational purposes.

7.1. Remaining EOI Stages and Portal

Remaining EOI stages and related member-portal workflows may collect additional information needed to assess suitability, administer services, manage offers, agreements and communications, and complete enrolment. Each collection point will use an appropriate collection notice or consent mechanism where required.

8. Direct Marketing and Electronic Communications

GYMFUSION may send service-related communications necessary to administer enquiries, enrolments, bookings, payments, safety matters or member accounts. Where we send commercial electronic messages, we do so in accordance with applicable requirements, including the Spam Act 2003 (Cth). Marketing emails or SMS messages will identify GYMFUSION and include a clear and functional way to unsubscribe or opt out where required. You may opt out of marketing communications at any time without affecting essential service communications.

9. Cookies and Similar Technologies

GYMFUSION's website uses cookies and similar technologies, including technologies used through the Wix platform. These technologies support functions such as website security, registered-member authentication, core site operation and platform performance.

Wix identifies cookies initially placed on Wix sites as generally essential. Depending on the features, integrations, third-party applications or custom code enabled on our website, additional functional, analytics or marketing technologies may also be used. Where applicable, GYMFUSION uses Wix privacy controls to allow visitors to manage preferences for non-essential cookies.

You can find further information about Wix privacy and cookie practices through the Wix Privacy & Security Hub and Wix Help Center. [Wix Privacy & Security Hub | Cookies and Your Wix Site](#).

10. Cross-Border Disclosure and Transfer of Personal Information

Some personal information may be disclosed to, stored by, or processed through technology providers or subprocessors located outside Australia. Where APP 8 applies, GYMFUSION takes reasonable steps required by law in relation to overseas disclosures. Health information transferred outside Victoria is handled in accordance with HPP 9 where applicable.

Current provider information indicates that Wix stores personal information in data centres in the United States and Ireland and may process information in other countries through group companies and processors. Stripe operates globally and may transfer personal data to countries where it or its service providers operate, including the United States and India. Microsoft 365 provides Australian data-residency commitments for qualifying core online services where the tenant is provisioned in Australia, while some processing or support may involve authorised subprocessors or other locations.

Because provider locations and subprocessors can change, GYMFUSION reviews provider information periodically and will update this Policy where a material change affects the countries or manner in which personal information is likely to be disclosed or transferred.

11. Data Security

GYMFUSION takes reasonable steps to protect personal and health information from misuse, interference, loss, unauthorised access, modification and disclosure. Safeguards are proportionate to the sensitivity of the information and the risks associated with the relevant system or process.

This may include:

Technical and System Safeguards

Encryption and secure transmission measures provided by approved platforms; access controls and authentication; role-based or least-privilege access where available; logging and audit records; secure configuration of Wix CMS and APIs; and controlled administrative access to Astro and Microsoft 365.

Administrative and Organisational Safeguards

Access to personal and health information is limited to authorised personnel who require the information for legitimate GYMFUSION functions. GYMFUSION also uses staff access controls, privacy-aware procedures, appropriate recordkeeping, incident management and periodic review of technology-provider arrangements. No security measure can eliminate all risk, but GYMFUSION takes reasonable steps appropriate to the circumstances.

12. Secure Retention and Destruction

12.1. General Retention

We retain personal information only for as long as reasonably necessary for the purpose for which it is held, to administer services and member records, to meet legal, insurance, accounting or audit obligations, or where another lawful reason requires retention. When information is no longer required, GYMFUSION takes reasonable steps to securely destroy or de-identify it, subject to any applicable legal retention requirement.

13. Accessing and Correcting Your Personal and Health Information

You may request access to personal information or health information GYMFUSION holds about you, and you may ask us to correct information that is inaccurate, out of date, incomplete, irrelevant or misleading. Rights of access and correction are subject to applicable legal exceptions and procedures, including APPs 12 and 13 where applicable and the Health Records Act 2001 (Vic) for health information held by a private-sector organisation in Victoria.

Privacy access and correction requests can be made through the Privacy & Data Protection webpage or by emailing privacy@gymfusion.com.au.

We will respond within a reasonable timeframe and, where we refuse access or correction, provide reasons where required by law and information about available complaint pathways.

GYMFUSION takes reasonable steps to keep personal and health information accurate, complete and up to date having regard to the purpose for which it is used. We may ask you to confirm or update information where circumstances have changed, where health information is time-sensitive, or before relying on older information for screening or service decisions.

14. Making a Privacy Complaint

If you have a concern about how GYMFUSION has handled your personal or health information, please contact us through our Privacy & Data Protection webpage or email privacy@gymfusion.com.au. Please provide enough information for us to understand and investigate the concern.

We will investigate privacy complaints fairly and respond in writing within a reasonable timeframe. We may contact you for further information where necessary.

If you are not satisfied with our response, you may be able to complain to the Office of the Australian Information Commissioner (OAIC) in relation to matters within its jurisdiction. Complaints concerning health information handled in Victoria may also be made to the Victorian Health Complaints Commissioner (HCC), where applicable.

External Complaint Information:

Office of the Australian Information Commission (OAIC) | www.oaic.gov.au
Health Complaints Commissioner | www.hcc.vic.gov.au

15. Contact Details

Email: privacy@gymfusion.com.au

General Enquiries: admin@gymfusion.com.au

Website: www.gymfusion.com.au

Postal Address: GYMFUSION, 70 New Dookie Rd, Shepparton VIC 3630.